CAMDEN COUNTY, NJ
CAMDEN COUNTY CLERK'S OFFICE
DEED-OR BOOK 09166 PG 0536
RECORDED 01/14/2010 11:50:30
FILE NUMBER 2010003313
RCPT #: 848015; RECD BY: suel
RECORDING FEES 100.00
MARGINAL NOTATION 0.00
TOTAL TAX 61,012.50

RECORD & RETURN TO:
SURETY TITLE CORPORATION
1 E. STOW RD.
MARLTON, NJ 08053
COMMERCIAL DEPT.
1032SP01

7

Prepared by:

Dilworth Paxson LLP

By: _____
Frank V. Tedesco, Esq.

DEED

This is not an official document

THIS DEED is made on January 4, 2010,

BETWEEN 116 KINGS HIGHWAY ASSOCIATES, L.L.C., a New Jersey limited liability company, having an address at 89 Haddon Avenue North, Suite B, Haddonfield, New Jersey 08033 (the "Grantor") **AND** HADDONFIELD MALL EQUITIES, LLC, a New Jersey limited liability company, having an address at 17000 Horizon Way, Suite 100, Mount Laurel, New Jersey 08054 (the "Grantee").

1. **Transfer of Ownership.** The Grantor grants and conveys (transfers ownership of) the property described below (the "Property") to the Grantee. This transfer is made for the sum of TWO MILLION EIGHT HUNDRED SEVENTY-FIVE THOUSAND AND 00/100 DOLLARS ($2,875,000.00). Grantor acknowledges receipt of this money.

2. **Tax Map Reference.** (N.J.S.A. 46:15-1.1) Borough of Haddonfield, Block No. 34, Lot No. 6.

3. **Property.** The Property consists of the land and all the buildings and structures on the land in the Borough of Haddonfield, County of Camden and State of New Jersey. The legal description of the Property is attached hereto as Exhibit "A" and made a part hereof.

1032SP-Q

BEING the same property conveyed by: (a) Corrective Deed from 116 Kngs Highway Associates, L.L.C. to Grantor, dated November 4, 2005 and recorded January 10, 2006 in the Camden County Clerk's Office in Deed Book 8072, beginning at Page 1092; (b) Corrective Deed from 116 Kings Highway East Associates, L.L.C. to 116 Kngs Highway Associates, L.L.C., dated June 27, 2005 and recorded July 22, 2005 in the Camden County Clerk's Office in Deed Book 7892, beginning at Page 124; and (c) Deed from Hudson City Savings Bank to 116 Kings Highway East

Associates, L.L.C. dated October 15, 2002 and recorded November 13, 2002 in the Camden County Clerk's Office in Deed Book 5264, beginning at Page 849.

4. **Promises by Grantor.** Grantor promises that except as set forth in this Deed, Grantor has done no act to encumber the Property. This promise is called a "covenant as to grantor's acts" (N.J.S.A. 46:4-6). This promise means that Grantor has not allowed anyone else to obtain any legal rights which affect the Property (such as by making a mortgage or allowing a judgment to be entered against Grantor).

5. **Signatures.** This Deed is signed by Grantor as of the date first above written.

GRANTOR:

116 KINGS HIGHWAY ASSOCIATES, L.L.C.,
a New Jersey limited liability company

By: _____
John F. Leonard
Managing Member

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STATE OF NEW JERSEY :

:SS.

COUNTY OF CAMDEN :

BE IT REMEMBERED that on this 4th day of January, 2010, before me, the undersigned witnessing authority, personally appeared John F, Leonard, who is the Managing Member of 116 KINGS HIGHWAY ASSOCIATES, L.L.C., a New Jersey limited liability company, and who is to me known to be the person who executed the foregoing instrument, and thereupon he did acknowledge that he (i) signed and delivered such instrument as their act and deed and as the act and deed of the Company, for the uses and purposes therein expressed and (ii) made this deed for $2,875,000.00 as the full and actual consideration paid or to be paid for the transfer of title. (Such consideration is defined in N.J.S.A. 46:15-5.)

IN WITNESS WHEREOF, I have hereunto set my hand the day and year in this acknowledgement first above written.

Notary Public

ANNE CARITE WARCHOL
Notary Public of New Jersey
My Commission Expires
October 17, 2013

My Commission expires:

[SEAL]

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GIT/REP-3
(12-07)

State of New Jersey
SELLER'S RESIDENCY CERTIFICATION/EXEMPTION
(C.55, P.L. 2004)

(Please Print or Type)

SELLER(S) INFORMATION (See Instructions, Page 2)

Name(s)

116 KINGS HIGHWAY ASSOCIATES, L.L.C., a New Jersey limited liability company

Current Resident Address:

Street: 89 Haddon Avenue North, Suite B

City, Town, Post Office	State	Zip Code
Haddonfield	NJ	08033

PROPERTY INFORMATION (Brief Property Description)

Block(s)	Lot(s)	Qualifier
34	6	

Street Address:

114-116 Kings Highway East

City, Town, Post Office	State	Zip Code
Haddonfield	NJ	08033

Seller's Percentage of Ownership	Consideration	Closing Date
100%	$2,875,000	1/4/2010

SELLER ASSURANCES (Check the Appropriate Box) (Boxes 2 through 8 apply to NON-residents)

1. ☐ I am a resident taxpayer (individual, estate, or trust) of the State of New Jersey pursuant to N.J.S.A. 54A:1-1 et seq. and will file a resident gross income tax return and pay any applicable taxes on any gain or income from the disposition of this property.
2. ☐ The real property being sold or transferred is used exclusively as my principal residence within the meaning of section 121 of the federal Internal Revenue Code of 1986, 26 U.S.C. s. 121.
3. ☐ I am a mortgagor conveying the mortgaged property to a mortgagee in foreclosure or in a transfer in lieu of foreclosure with no additional consideration.
4. ☐ Seller, transferor or transferee is an agency or authority of the United States of America, an agency or authority of the State of New Jersey, the Federal National Mortgage Association, the Federal Home Loan Mortgage Corporation, the Government National Mortgage Association, or a private mortgage insurance company.
5. ☒ Seller is not an individual, estate or trust and as such not required to make an estimated payment pursuant to N.J.S.A.54A:1-1 et seq.
6. ☐ The total consideration for the property is $1,000 or less and as such, the seller is not required to make an estimated payment pursuant to N.J.S.A. 54A:5-1-1 et seq.
7. ☐ The gain from the sale will not be recognized for Federal income tax purposes under I.R.C. Section 721, 1031, 1033 or is a cemetery plot. (CIRCLE THE APPLICABLE SECTION). If such section does not ultimately apply to this transaction, the seller acknowledges the obligation to file a New Jersey income tax return for the year of the sale (see instructions).

   ☐ No non-like kind property received.
8. ☐ Transfer by an executor or administrator of a decedent to a devisee or heir to effect distribution of the decedent's estate in accordance with the provisions of the decedent's will or the intestate laws of this state.

SELLER(S) DECLARATION

The undersigned understands that this declaration and its contents may be disclosed or provided to the New Jersey Division of Taxation and that any false statement contained herein could be punished by fine, imprisonment, or both. I furthermore declare that I have examined this declaration and, to the best of my knowledge and belief, it is true, correct and complete.

116 KINGS HIGHWAY ASSOCIATES, L.L.C.
By: John P. Leonard, Managing Member

January 4, 2010
Date — Signature
(Seller) Please indicate if Power of Attorney or Attorney in Fact

Date — Signature
(Seller) Please indicate if Power of Attorney or Attorney in Fact

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RTF-1 (Rev. 7/08)
MUST SUBMIT IN DUPLICATE

STATE OF NEW JERSEY

AFFIDAVIT OF CONSIDERATION FOR USE BY SELLER

(Chapter 49, P.L.1968, as amended through Chapter 33, P.L. 2006) (N.J.S.A. 46:15-5 et seq.)

BEFORE COMPLETING THIS AFFIDAVIT, PLEASE READ THE INSTRUCTIONS ON THE REVERSE SIDE OF THIS FORM.

STATE OF NEW JERSEY
} SS.
COUNTY Camden County Municipal Code 0417

FOR RECORDER'S USE ONLY	
Consideration	$
RTF paid by seller	$
Date	By

*Use symbol "C" to indicate that fee is exclusively for county use.

MUNICIPALITY OF PROPERTY LOCATION Borough of Haddonfield

(1) PARTY OR LEGAL REPRESENTATIVE *(See Instructions #3 and #4 on reverse side)*

Deponent, John F. Leonard (Name), being duly sworn according to law upon his/her oath, deposes and says that he/she is the Managing Member of Grantor (Grantor, Legal Representative, Corporate Officer, Officer of Title Company, Lending Institution, etc.) in a deed dated January 4, 2010 transferring real property identified as Block number 34 Lot number 16 & 6B located at 114-116 Kings Highway East, Haddonfield (Street Address, Town) and annexed thereto.

(2) CONSIDERATION $ 2,875,000.00 *(See Instructions #1 and #5 on reverse side)*

(3) Property transferred is Class (4A) 4B 4C (circle one). If property transferred is Class 4A, calculation in Section 3A below is required.

(3A) **REQUIRED CALCULATION OF EQUALIZED VALUATION FOR ALL CLASS 4A COMMERCIAL PROPERTY TRANSACTIONS:**
(See Instructions #5A and #7 on reverse side)

Total Assessed Valuation ÷ Director's Ratio = Equalized Assessed Valuation

$ 2,092,000.00 ÷ 103.02 % = $ 2,030,673.65

If Director's Ratio is less than 100%, the equalized valuation will be an amount greater than the assessed value. If Director's Ratio is equal to or in excess of 100%, the assessed value will be equal to the equalized valuation.

(4) FULL EXEMPTION FROM FEE *(See Instruction #8 on reverse side)*
Deponent states that this deed transaction is fully exempt from the Realty Transfer Fee imposed by C. 49, P.L. 1968, as amended through C. 66, P.L. 2004, for the following reason(s). Mere reference to exemption symbol is insufficient. Explain in detail.

(5) PARTIAL EXEMPTION FROM FEE *(See Instruction #9 on reverse side)*
NOTE: All boxes below apply to grantor(s) *only*. **ALL BOXES IN APPROPRIATE CATEGORY MUST BE CHECKED**. Failure to do so will void claim for partial exemption. Deponent claims that this deed transaction is exempt from State portions of the Basic Fee, Supplemental Fee, and General Purpose Fee, as applicable, imposed by C. 176, P.L. 1975, C. 113, P.L. 2004, and C. 66, P.L. 2004 for the following reason(s):

A. **SENIOR CITIZEN** Grantor(s) ☐ 62 years of age or over. * *(See Instruction #9 on reverse side for A or B)*
B. **BLIND PERSON** Grantor(s) ☐ legally blind; *
DISABLED PERSON Grantor(s) ☐ permanently and totally disabled ☐ Receiving disability payments ☐ Not gainfully employed*

Senior citizens, blind persons, or disabled persons must also meet **all** of the following criteria:
☐ Owned and occupied by grantor(s) at time of sale. ☐ Resident of State of New Jersey.
☐ One or two-family residential premises. ☐ Owners as joint tenants must all qualify.

*IN THE CASE OF HUSBAND AND WIFE, PARTNERS IN A CIVIL UNION COUPLE, ONLY ONE GRANTOR NEEDS TO QUALIFY IF TENANTS BY THE ENTIRETY.

C. **LOW AND MODERATE INCOME HOUSING** *(See Instruction #9 on reverse side)*
☐ Affordable according to H.U.D. standards. ☐ Reserved for occupancy.
☐ Meets income requirements of region. ☐ Subject to resale controls.

(6) NEW CONSTRUCTION *(See Instructions #2, #10 and #12 on reverse side)*
☐ Entirely new improvement. ☑ Not previously occupied.
☐ Not previously used for any purpose. ☑ **"NEW CONSTRUCTION"** printed clearly at the top of the first page of the deed.

(7) Deponent makes this Affidavit to induce county clerk or register of deeds to record the deed and accept the fee submitted herewith in accordance with the provisions of Chapter 49, P.L. 1968, as amended through Chapter 33, P.L. 2006.

Subscribed and sworn to before me
this 4th day of January, 2010

ANNE CARITE WARCHOL
Notary Public of New Jersey
My Commission Expires
October 17, 2013

Signature of Deponent
89 Haddon Avenue North, Suite B
Haddonfield, New Jersey 08033
Deponent Address

XXX-XXX-735
Last 3 digits in Grantor's Social Security Number

116 Kings Highway Associates, L.L.C.
Grantor Name
89 Haddon Avenue North, Suite B
Haddonfield, New Jersey 08033
Grantor Address at Time of Sale

Surety Title
Name/Company of Settlement Officer

FOR OFFICIAL USE ONLY	
Instrument Number	County
Deed Number	Book / Page
Deed Dated	Date Recorded

County Recording Officers shall forward one copy of each Affidavit of Consideration for Use by Seller when Section 3A is completed.

STATE OF NEW JERSEY- DIVISION OF TAXATION
PO BOX 251
TRENTON, NJ 08695-0251
ATTENTION: REALTY TRANSFER FEE UNIT

The Director of the Division of Taxation in the Department of the Treasury has prescribed this form as required by law, and may not be altered or amended without prior approval of the Director. For information on the Realty Transfer Fee or to print a copy of this Affidavit, visit the Division of Taxation website at: **www.state.nj.us/treasury/taxation/lpt/localtax.shtml**.

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EXHIBIT "A"

LEGAL DESCRIPTION

File No.: **1032SP-01**

ALL THAT CERTAIN tract or parcel of land and premises lying, being and situate in Haddonfield Borough, Camden County, and State of New Jersey being more particularly described as follows:

BEGINNING at a point in the Southeasterly line of Kings Highway East, as approved December 15, 1931 and adopted by Ordinance February 16, 1932 by Borough Commissioners, 171.76 feet Northeastwardly from the Easterly corner of Kings Highway East and Chestnut Street, said beginning point being corner to remaining lands of George W. Westcoatt and Dorothy F. Westcoatt;

Thence: Northeastwardly along Southeasterly line of Kings Highway East, 84 feet to point corner to lands of Trustees of Baptist Church of Haddonfield (formerly John Clement) and said point also being 97.23 feet Southwestwardly from foundation wall of 128 Kings Highway East (Hunt's cellar wall);

Thence: Southeastwardly forming interior angles of 89 degrees 46 minutes 45 seconds with Kings Highway East and running along lands of said Trustees of Baptist Church of Haddonfield 231.84 feet to point in line of said Trustees of Baptist Church and corner to lands of the Borough of Haddonfield;

Thence: Southwestwardly along lands of Borough of Haddonfield and forming an interior angle of 89 degrees 44 minutes 10 seconds with the last course 83.05 feet to point corner of remaining lands of Estate of Charles H. Ellis;

Thence: Northwestwardly along line of remaining land of Estate of Charles H. Ellis and also along line of remaining lands of George W. Westcoatt and Dorothy F. Westcoatt aforesaid and forming and interior angle of 90 degrees 30 minutes with last course and also forming an interior angle of 89 degrees 59 minutes 5 seconds with Kings Highway East 231.15 feet to Southeasterly line of Kings Highway East and place of BEGINNING.

BEING premises No. 114-116 **Kings Highway East.**

BEING Block: 34, Lot: 6

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DEED **116 KINGS HIGHWAY ASSOCIATES, L.L.C.,** a New Jersey limited liability company TO **HADDONFIELD MALL EQUITIES, LLC,** a New Jersey limited liability company	*Record and return to:*

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